

M/S. Shyam Forging (P) Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 22 May 2013 · Writ - C No. 29077 of 2013 · **Writ disposed; 40% deposit; clause 6.5 representation; no disconnection.**

HEADNOTE

Where the billed amount is not disputed and the consumer seeks time to pay a huge arrear citing financial stress, clause 6.5 of the Electricity Supply Code, 2005 permits the competent authority to grant facility after considering that stress. The writ was disposed by relegating the petitioner to a fresh 6.5 representation (to be decided within three weeks), directing deposit of 40% of the dues and payment of current bills, and restraining disconnection meanwhile.

FACTUAL SUMMARY

M/s Shyam Forging (P) Ltd. approached the Allahabad High Court against Paschimanchal Vidyut Vitran Nigam Ltd. over a large electricity bill. At the hearing it conceded there was no dispute about the billed amount and sought only breathing time to pay, citing financial stress, and relied on an earlier restoration order in Writ C No. 15680 of 2013. The Court noted that earlier case concerned a disconnected supply needing immediate restoration. The petitioner also feared disconnection of the live connection while the huge arrears remained unpaid.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

payment facility and stay of disconnection pending clause 6.5 consideration

HOLDING

Clause 6.5 of the Electricity Supply Code, 2005 permits the competent authority to grant facility after considering the consumer's financial stress and other aspects. The petitioner was allowed to make a fresh representation with a certified copy of this order; the authority was to decide within three weeks, after which compliance was for the petitioner. Pending that decision, the petitioner was to deposit 40% of the total dues and pay regular current bills, and no disconnection was to take place. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Where the billed amount is not disputed and the consumer seeks time to pay a huge arrear citing financial stress, clause 6.5 of the Electricity Supply Code, 2005 permits the competent authority to grant facility after considering that stress.. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Order in Writ - C No. 15680 of 2013</i>			1	Referred